

ACCIDENT WAIVER & RELEASE FORM

PLEASE READ THIS FORM CAREFULLY BEFORE SIGNING. THIS IS A RELEASE OF LIABILITY AND WAIVER OF CERTAIN LEGAL RIGHTS

I, _____, hereby acknowledge and accept that _____ (the “**Event**”) carries with it the potential for death, serious injury, social, economic and/or property loss. The risks for the Event include, but are not limited to, those caused by equipment, tools, manual labor, heavy lifting, terrain, bicycle accidents, bicycle racing, facilities, dancing, temperature, consumption of alcohol, lack of hydration, volunteers, spectators, Event officials, Event monitors, and/or producers of the Event (the “**Risks**”). These Risks are not only inherent to the participants, but also for volunteers of the Event.

By initialing and signing below, I certify that I am prepared for participation in this Event. I acknowledge and accept that this Accident Waiver and Release Form (“**Waiver**”) will be used by Rowdy Collective, LLC, a Colorado limited liability company as well as each of its respective officers, Directors, shareholders, ambassadors, members, employees, volunteers, officials, Event participants, sponsors, public officials, officers and/or organizers, and/or agents (collectively the “**Event Related Parties**”) and that it will govern all of my actions, participation, and responsibilities in relation to (i) the Event and (ii) travel to and from the Event, and (iii) activities following the Event hosted or organized by the Event Related Parties (collectively, the “**Event Related Activities**”).

In consideration of my application and the Event Related Parties permitting me to participate in the Event and/or Event Related Activities, for myself, my executors, administrators, heirs, next of kin, successors, and assigns, by initialing each line below I hereby acknowledge, confirm and agree as follows:

_____ (a) Assumption and Acceptance of Risks. I hereby understand, acknowledge, agree and expressly assume and accept all of the Risks, both known and unknown and foreseen and unforeseen, of participating and/or volunteering in this Event and Event Related Activities. I further understand and acknowledge that liability may arise from negligence or carelessness on the part of the persons and/or entities being released, from dangerous or defective equipment or property owned, maintained or controlled by them, specifically including all Event Related Parties, with or without their fault, and/or in connection with this Event occurring on trails, public roadways, and/or contemporaneously with on-going public traffic and/or competing uses on such public roads/lands.

_____ (b) Release and Indemnity Agreement. I agree, on behalf of myself, my family, heirs, successors, assigns, survivors, executors or anyone else claiming any interest through me, to hereby KNOWINGLY, INTENTIONALLY, AND VOLUNTARILY WAIVE, RELEASE, INDEMNIFY, AND AGREE TO HOLD HARMLESS the Event Related Parties, their employees, staff, officers, members, managers, directors, volunteers, consultants, assigns and agents, and other riders/participants FROM AND AGAINST ANY AND ALL ACTIONS, LAWSUITS, CLAIMS, DAMAGES, LIABILITY AND LOSS (INCLUDING ATTORNEYS’ FEES AND COSTS) OF ANY KIND WHATSOEVER, that I, my family, heirs, successors, assigns, survivors, executors or anyone else claiming any interest through me MAY HAVE FOR ANY DAMAGE, INJURY, PARALYSIS, LOSS OR DEATH TO MYSELF OR ANY OTHER PERSON OR PROPERTY ARISING OUT OF OR RELATED TO THE EVENT, whether such damage, injury, paralysis, loss or death results from negligence or other fault of any of the Event Related Parties or from any other cause. I, AND MY ESTATE IF I DIE, HEREBY HOLD HARMLESS AND INDEMNIFY ALL OF THE EVENT RELATED PARTIES FOR ANY AND ALL CLAIMS, INCLUDING ATTORNEYS’ FEES AND COSTS, WHICH MAY BE BROUGHT AGAINST ANY OR ALL OF THE EVENT RELATED PARTIES BY ANYONE CLAIMING TO HAVE BEEN

INJURED AS A RESULT OF MY DEATH, ANY INJURY TO ME OR MY PROPERTY OR THROUGH MY ACTIONS, WHICH CLAIMS AROSE FROM OR ARE RELATED TO MY INVOLVEMENT IN THE EVENT.

_____ (c) Agreement Not to Sue. I hereby agree that neither I, my family, heirs, successors, assigns, survivors, executors or anyone else claiming any interest through me, WILL NOT INITIATE OR ASSIST TO BRING ANY LEGAL ACTION WHATSOEVER AGAINST ANY OF THE RELEASED PARTIES as a result of any damage, injury, paralysis, loss or death to myself or my property that arises out of my participation in the Event. If I initiate, or if anyone on behalf initiates, any lawsuit, cause of action, or claim for damages against any of the Event Related Parties, I agree that the Event Related Parties shall be entitled to recover from any such suing party all attorneys' fees and costs incurred in the defense of such lawsuit, cause of action, or claim for damages and any actions arising there from.

_____ (d) Indemnity against Third Party claims. I agree to indemnify the Event Related Parties from and against any and all losses, claims, actions, or proceedings of every kind and character, including attorney fees and costs, presented or initiated by any third person or organization as a result of my participation in the Event, whether resulting from negligence or other fault, either active or passive, of any of the Event Related Parties, or from any other cause.

_____ (e) Release for Use of Likeness. I understand that during this Event and/or Event Related Activities I may be photographed. I agree to allow my photo, video, and/or likeness to be used, published, and/or distributed for any legitimate purpose by the Event Related Parties and hereby release and forgo any rights to claim ownership of or to any of such photographs, and/or any proceeds generated therefrom.

This Waiver shall be construed as broadly as allowed under applicable laws to provide to the Event Related Parties full rights in and to the releases, waivers, indemnification and other representations and commitments contained herein, to the maximum extent permissible. Any dispute arising herefrom or participation in the Event and/or Event Related Activities shall be resolved solely in the City and County of Denver, Colorado and be subject to the laws of the State of Colorado. If any provision of this Waiver shall be found unlawful, void or, for any reason, unenforceable, then that provision shall be severable from this Waiver, and shall not affect the validity and enforceability of any of the remaining provisions.

By indicating my acceptance of this Waiver, I affirm that I have read and understood this Waiver and fully understand its terms. I understand that I am giving up substantial rights, including the right to sue. I acknowledge that I am signing this Waiver freely and voluntarily, and I intend my acceptance to be a complete and unconditional release of all liability to the greatest extent allowed by law.

Name of Entrant/Volunteer (print)

Signature of Entrant/Volunteer (or if Minor, Signature
of Parent or Guardian)

Date: _____

Emergency Contact: _____

Phone: _____

I understand that, if signing this Waiver as a parent or guardian, I am waiving the minor's rights to any future claims for damages or injuries which may result from this activity and do so voluntarily and with the full understanding and information as to any and all questions I might have regarding this Event and/or Event Related Activities.

Signature of Registered Adult Accompanying Minor Entrant

Date